

party to apply for injunctive relief in connection with *an arbitrable controversy*, which includes “any and all disputes that may arise between [the parties].” (See MAA §§ 2-3. Emphasis added.) Moreover, even if this section could be construed as one-sided, a provision is not “unfairly one-sided merely because one side is, as a practical matter, more likely to make use of it.” (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1248, fn. 4.0.)

Plaintiff’s request for an evidentiary hearing under Rules of Court, rule 3.1306 and *Rosenthal, supra*, 14 Cal.4th 394 is DENIED, on the grounds that Plaintiff fails to articulate any good cause warranting the extraordinary request for live testimony, as opposed to standard declarations and documentary evidence. (See Rules of Court, rule 3.1306(a).) Plaintiff’s own failure to certify the translation of her declaration does not belatedly serve as good cause.

Based on the foregoing, the motion is GRANTED.

Defendants’ request for sanctions under sections 128.5 and 128.7 is DENIED on the grounds that Defendants’ only discussion of the authority or basis therefor is in a footnote in their Memorandum.

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In The Matter of Alyssa McIntosh

26CV000811

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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In The Matter of Nicolas F De Pierola Alvarado

26CV000983

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on May 08, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court’s file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to July 21, 2026, at 8:30 a.m. in Dept. B to provide any publisher time to file the POP.